TENTATIVE RULING(S) FOR May 7, 2026
Department S14 – Judge Winston Keh

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2531000

Gomez v. Castro

TENTATIVE RULING(S):

This is a Fair Employment and Housing Act (FEHA) and California Family Rights Act (CFRA) litigation. On October 21, 2025, Plaintiff Sandra Gomez ("Plaintiff") filed her Complaint against Defendants West Coast Dental Administrative Services LLC (WCD), Diana Castro, and Vanessa Duarte. Later, Plaintiff named Cohen Sedgh, Manavi & Pakravan Dental Corporation (CMP) as Doe 1 (collectively "Defendants").

Now before the Court is Defendants' motion to compel arbitration. Plaintiff opposes and Defendants reply. Defendants move under the Federal Arbitration Act (FAA) or alternatively under the California Arbitration Act (CAA).

Federal Law Regarding Compelling Arbitration

The FAA authorizes enforcement of arbitration clauses unless grounds exist at law or in equity for the revocation of any contract. (9 U.S.C. § 2.) In contracts governed by the FAA, conflicting state law is preempted in either state or federal courts. (*Volt Info. Sciences, Inc. v. Bd. of Trustees of Leland Stanford Junior Univ.* (1989) 489 U.S. 468, 477.)

Arbitration agreements are contract matters; they provide a mechanism to resolve those disputes that the parties agreed to submit to arbitration. (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 943.) Under the FAA, to compel arbitration, a finding must be made that a valid agreement to arbitrate exists between the parties and that the agreement encompasses the dispute at issue. (*Chiron Corp. v. Ortho Diagnostic Sys.* (9th Cir. 2000) 207 F.3d 1126, 1130.) By its terms, the FAA does not vest courts with discretion but instead mandates that courts shall direct parties to proceed to arbitration on issues for which an arbitration agreement has been signed. (*Id.,* at p. 1130.)

California Law Regarding Compelling Arbitration

Under Code of Civil Procedure section 1281.2, a party to an arbitration agreement may move to compel arbitration if another party to the agreement refuses to arbitrate, and the court shall compel arbitration if it determines that an agreement to arbitrate exists. The section also provides for exceptions to arbitration, including where grounds exist for rescission of the agreement and other grounds not applicable here. (Code Civ. Proc., § 1281.2, subds. (a)-(d).)
A threshold issue for the court in every motion to compel arbitration is whether an arbitration agreement exists. (*Trinity v. Life Ins. Co. of North America* (2022) 78 Cal. App. 5th 1111, 1120.) "The party seeking to compel arbitration bears the burden of producing by a preponderance of the evidence an agreement to arbitrate a dispute exists." (*Ibid*.)
The moving party can meet its initial burden by attaching to its motion a copy of the arbitration agreement purporting to bear the opposing party's signature or set forth the agreement's provisions verbatim in the motion. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 (*Gamboa*); Cal. Rules of Court, rule 3.1330.) For this initial step, it is not necessary to follow normal procedures of document authentication because the court is only

required to make a finding of the agreement's existence, not an evidentiary determination of its validity. (*Gamboa, supra,* 72 Cal.App.5th at p. 165; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219.)

If the opposing party disputes the agreement, he or she bears the burden of producing evidence to challenge the authenticity of the agreement. (*Gamboa, supra,* 72 Cal.App.5th at p. 165.) "The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (*Ibid.*)

If the opposing party meets its burden, then the moving party must establish with admissible evidence a valid arbitration agreement between the parties and must do so by a preponderance of the evidence. (*Gamboa, supra,* 72 Cal.App.5th at pp. 165-166.)

If a valid agreement to arbitrate is established, the burden then shifts to the party opposing arbitration to prove by a preponderance of the evidence any grounds for denial of the petition. (*Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394, 413.)

Timeliness

There does not appear to be any timing requirement under the FAA or CAA. Defendants' motion supplied the statutory 16 days' court notice in advance of the motion. As such, the motion is brought timely.

Evidentiary Objections

Defendants raise six evidentiary objections to the Gomez' declaration.

The Court SUSTAINS Objection 1 based on legal conclusion; SUSTAINS Objection 3 based on hearsay; and OVERRULES Objections 2, 4, 5, 6.

Existence of Valid Arbitration Agreement

Defendants contend that Plaintiff signed arbitration agreements in 2019 and 2021 in connection with her employment. (Lozano Decl., ¶¶9, 10, Exhs. A, B.) Lozano is WCD's vice president of human resources; he does not state the dates when he has held this position. (Lozano Decl., ¶1.) Lozano attests that Plaintiff entered into the mutual agreement to arbitrate claims on February 7, 2019 (2019 Agreement). (Lozano Decl., ¶9, Exh. A.) The 2019 Agreement states it shall be governed by the Federal Arbitration Act. (*Id.,* at p. 2, ¶3.) Lozano further states that on April 1, 2021, Plaintiff voluntarily signed another arbitration agreement agreeing to arbitrate claims with Defendants (2021 Agreement). (Lozano Decl., ¶10, Exh. B.) The 2021 Agreement states it shall be governed by the FAA. (*Id.,* at p. 1, ¶1.)

The 2019 Agreement states that arbitrable claims include those based on any federal, state, or local law, statute, or regulation including FEHA and the California Labor Code. (Lozano Decl., Exh. A, p. 1, ¶2.) Because Plaintiff's Complaint alleges such claims, the 2019 Agreement covers the dispute at issue.

The 2021 Agreement states the parties mutually consent to resolution by arbitration of all claims whether or not the claims arise out of the employee's employment or termination, including claims for discrimination under state or federal law and claims for violation of any federal, state, or other governmental law, statute, regulation, or ordinance. (Lozano Decl., Exh. B, p. 1, ¶3.) Because Plaintiff's Complaint alleges discrimination claims plus claims arising under FEHA, the Labor Code, and CFRA, the 2021 Agreement encompasses the disputes at issue. With this evidence, Defendants have met their initial prima facie burden to show the existence of an arbitration agreement between them and Plaintiff.

In opposition, Plaintiff challenges the authenticity of the 2019 Agreement and 2021 Agreement. First, Plaintiff contends the 2/7/19 signature on the 2019 Agreement predates her start date and onboarding process. (Gomez Decl., ¶3.) Plaintiff describes being hired on the spot for a dental assistant position in January 2019, but she could not start right away; Defendants' regional manager Lucy Gonzalez instructed Plaintiff to report for her first day on February 11, 2019. (Gomez Decl., ¶3.) Plaintiff attests she did not have contact with anyone from WCD or CMP in the two weeks before her 2/11/19 start date and did not sign any documents on February 7, 2019. (Gomez Decl., ¶3.) When she started work on 2/11/19, Plaintiff did not review or sign any documents. (Gomez Decl., ¶4.) With this evidence, Plaintiff successfully challenged the authenticity of the 2019 Agreement by a preponderance of the evidence, by attesting she did not start working for Defendants until 2/11/19 and did not sign any documents for Defendants on 2/7/19.

Around February 21, 2019, Plaintiff reported to WCD's Artesia office for orientation where she watched videos, completed computer modules, and reviewed and signed documents on a screen. (Gomez Decl., ¶5.) Plaintiff recalls seeing a document entitled "Arbitration Agreement" which one of the presenters explained was "nothing, just something saying that if you leave or aren't happy, we can settle outside of court but you're not waiving your right to a court hearing or anything like that." (Gomez Decl., ¶5.) After that explanation, Plaintiff was instructed to sign the document and did so electronically; she was not given the option to opt out. (Gomez Decl., ¶5.) Plaintiff did not understand that by signing she was waiving her right to a jury trial because she was told that signing did not waive her right to a court hearing. (Gomez Decl., ¶5.) With this evidence, Plaintiff challenged the authenticity of the 2019 Agreement by a preponderance of the evidence by stating that Defendants' representative told her information that conflicted with the language in the 2019 Agreement, which states that each side waives the right to a jury trial. (Lozano Decl., Exh. A, p. 2, second from last paragraph.)

Gonzalez promoted Plaintiff to office manager in April 2021; the only document Plaintiff received in connection with the promotion was an employment offer letter. (Gomez Decl., ¶6.) Regarding the 2021 Agreement, Plaintiff states she never read, reviewed, or signed an arbitration agreement in April 2021 and the document was never presented to her. (Gomez Decl., ¶¶6, 9.) Plaintiff did not know that continuing to work for ten days constituted assent to the arbitration agreement because she was never given the document to review and she did not sign it. (Gomez Decl., ¶6.) With this evidence, Plaintiff challenged the authenticity of the 2021 Agreement by a preponderance of the evidence by stating that she was never provided an arbitration agreement to review or sign in connection with her promotion.

Plaintiff states she never met with nor interacted with Defendants' witness Lozano, and he was not present during her onboarding process. (Gomez Decl., ¶7.) Plaintiff contradicts Lozano's statement that Gomez's signature could only be placed on the agreements using her unique username and password. (Lozano Decl., ¶15.) Plaintiff states she was able to contact human resources to unlock her account or reset her password. (Gomez Decl., ¶15.)

In *Gamboa,* the plaintiff met her burden to challenge an arbitration agreement's authenticity by filing an opposing declaration saying she did not recall the agreement and would not have signed it if she had been aware of it. (*Gamboa, supra,* 72 Cal.App.5th at p. 167.) Not remembering an arbitration agreement is a challenge to its signature; in the face of such evidence, the party compelling arbitration has the burden of proving by a preponderance of evidence that a signature was authentic. (*Id.,* at pp. 167-168.)

Because Plaintiff met her burden to challenge the authenticity of the 2019 and 2021 Agreements, the burden shifts back to Defendants to establish with admissible evidence a valid arbitration agreement between the parties, by a preponderance of evidence. (*Gamboa, supra,* 72 Cal.App.5th at pp. 165-166.) Defendants' evidence must contain foundational facts (including relevance, personal knowledge, or authentication of a writing) to be admissible. (*Id.,* at p. 169; Evid. Code, § 403, subd. (a)(1)-(3).)

In *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836 (*Ruiz*), a defendant employer filed a reply declaration attempting to authenticate the plaintiff's signature on an arbitration agreement, but the court found the manager's declaration was insufficient to support such a finding with respect to an electronic signature. (*Ruiz, supra,* 232 Cal.App.4th at pp. 844-846.)

Civil Code section 1633.9, subdivision (a), states that an electronic record or signature is attributable to a person if it was the act of the person; the act of the person may be shown in any manner including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or signature was attributable. The effect of an electronic record or signature attributed to a person under subdivision (a) is determined from the context and surrounding circumstances at the time of its creation, execution, or adoption, including the parties' agreement, if any and otherwise as provided by law. (Civ. Code, § 1633.9, subd. (b).)

In the *Ruiz* reply declaration, the defendant's employee explained the agreement was part of an employee acknowledgment form presented to all defendant employees and each employee is required to log into the company's HR system using his unique login ID and password to review and sign the form. (*Ruiz, supra,* 232 Cal.App.4th at p. 844.) But the *Ruiz* court observed that the defendant employee did not explain how or upon what basis she inferred that the electronic signature on the agreement was "the act of" Ruiz, which left a critical gap in the evidence supporting the petition to compel arbitration. (*Ibid.*)

If the defendant employee explained that an electronic signature in Ruiz's name could only have been placed on the agreement by a person using Ruiz's unique login ID and password, that the date and time printed next to the electronic signature indicated the date and time the signature was made, that all defendant employees were required to use their unique login ID and password to log into the HR system to sign electronic forms, and therefore the electronic signature on the agreement was apparently made by Ruiz on 9/21/11 at 11:47 am, that could have supported an inference that Ruiz was the person who electronically signed the agreement. (*Ruiz, supra,* 232 Cal.App.4th at p. 844.)

Here, in Lozano's supplemental declaration submitted with Defendants' reply brief, he states that Gomez's electronic signature and name could only be placed on the 2019 and 2021 Agreements through ADP WorkforceNow/DocuSign as accessed by Gomez's unique username and password. (Lozano Supp. Decl., ¶11.) Lozano states that when completing onboarding documents, WCD employees are asked to sign into their ADP WorkforceNow account using their unique personal login information and password to open and review onboarding documents including the arbitration agreements. (Lozano Supp. Decl., ¶7.) Consistent with the *Ruiz* court's analysis, this evidence supports Lozano's inference that Gomez was the person who electronically signed the 2019 and 2021 Agreements.

Despite Plaintiff's challenge to the authenticity of the 2019 and 2021 Agreements, Defendants met their burden by a preponderance of evidence to show that a valid arbitration agreement exists between the parties.

The Court FINDS a valid arbitration agreement exists between Plaintiff and Defendants.

Unconscionability

Plaintiff contends the 2019 and 2021 Agreements are procedurally and substantively unconscionable and therefore unenforceable. Unconscionability requires both procedural and substantive elements; both must be present but are evaluated on a sliding scale. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*).) "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Id.,* at p. 114.) Procedural unconscionability focuses on "oppression" or "surprise" due to unequal bargaining power whereas substantive unconscionability considers "overly harsh" or "one-sided" results. (*Ibid.*)

Procedural Unconscionability

"Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion." (*Armendariz, supra,* 24 Cal.4th at p. 113 (*Armendariz*).) An adhesion contract signifies a standardized contract imposed and drafted by the party of superior bargaining strength and gives the weaker party only the opportunity to adhere to the contract or reject it. (*Ibid.*)

There is no evidence that Gomez participated in drafting the 2019 and 2021 Agreements and each appears to be a standardized, form contract. (Lozano Decl., Exhs. A, B.) For the latter point, in the 2019 Agreement, the name "Sandra Gomez" is inserted into the first line of the agreement on a blank space labeled "Employee." (Lozano Decl., Exh. A, p. 1, ¶1.) In the 2021 Agreement, Gomez's name is not even included in the body of the agreement; instead, the first paragraph states the agreement is made between WCD and "an employee of the Company (the "Employee")." (Lozano Decl., Exh. B, p. 1, ¶1.) These facts support the conclusion that the 2019 and 2021 Agreements are standardized, form contracts drafted by WCD and imposed upon the weaker party, Gomez.

For the 2019 Agreement, Gomez states that one of WCD's presenters at the orientation on 2/21/19 told her the document was nothing and it meant the parties could settle out of court but Gomez was not waiving her right to a court hearing or anything like that. (Gomez Decl.,

¶5.) Then, Gomez was instructed to sign and move to the next document; Gomez did so and states she was not given the choice to opt out. (*Ibid.*) These facts support the conclusion that the 2019 Agreement was presented to Gomez in a take-it-or-leave-it fashion, another indicator that it was an adhesive contract.

The *Armendariz* Court found that, generally, preemployment contracts that are imposed on employees as a condition of employment with no opportunity to negotiate are adhesion contracts. (*Armendariz, supra,* 24 Cal.4th at pp. 114-115.) The evidence here shows that the 2019 and 2021 Agreements are each an adhesion contract which means there is some degree of procedural unconscionability present. (*Armendariz, supra,* 24 Cal.4th at pp. 113-114.)

Here, the Court FINDS a moderate degree of procedural unconscionability present in the 2019 and 2021 Agreements.

Substantive Unconscionability

Plaintiff advances two reasons why the 2019 and 2021 Agreements are substantively unconscionable: 1) they fail to provide for a truly neutral arbitrator and 2) they provide minimal discovery.

Neutral Arbitrator: A neutral arbitrator is essential to ensuring the integrity of the arbitration process. (*Armendariz, supra,* 24 Cal.4th at p. 103.) Plaintiff raises the "repeat player effect" as a reason to question the integrity of the arbitration process here. In *Mercuro v. Super. Ct.* (2002) 96 Cal.App.4th 167 (*Mercuro*), the court acknowledged that an employer repeatedly appearing before the same group of arbitrators conveys distinct advantages over the individual employee, including knowledge of the arbitrators' temperaments, procedural preferences, styles and the like, and the arbitrators' cultivation of further business by taking a "split the difference" approach to damages. (*Mercuro, supra,* 96 Cal.App.4th at p. 178.)

Here, Gomez does not supply any evidence that the "repeat player effect" is a factor here. For example, there is no evidence about the number of times that Defendants have appeared before JAMS to conduct employment-related arbitrations. As such, there is no evidence that Defendants have knowledge of the JAMS arbitrators' temperaments, procedural preferences, or styles. Therefore, Plaintiff's failure to provide a neutral arbitrator argument is not persuasive and Plaintiff has not shown that this type of substantive unconscionability exists here.

Minimal Discovery: The *Armendariz* Court set forth five minimum requirements for lawful arbitration in the context of mandatory employment arbitration agreements; one requirement is that the arbitration agreement "provides for more than minimal discovery." (*Armendariz, supra,* 24 Cal.4th at p. 102.)

Plaintiff argues that the 2019 Agreement does not mention discovery procedures at all but merely states that any arbitration proceeding shall be conducted per current JAMS employment arbitration rules and procedures. (Lozano Decl., Exh. A, ¶1.) Gomez attests she never received a copy of the 2019 or 2021 Agreements; therefore, she would not have had access to or knowledge of the JAMS rules regarding discovery. But Gomez does not supply any legal authority that the consideration of whether an arbitration agreement provides more than minimal discovery hinges on whether the employee was provided a copy of the arbitration forum's rules or a copy of the arbitration agreement.

Plaintiff did not attach a copy of the JAMS employment arbitration rules and procedures, nor did she describe the discovery procedures therein. In their moving papers, Defendants supplied a copy of the current JAMS employment arbitration rules. (Zakariaie Decl., ¶9, Exh. D.) Rule 17 states the parties shall cooperate in good faith in the voluntary and informal exchange of all non-privileged documents and other information including electronically stored information relevant to the dispute or claim immediately after commencement of arbitration. (*Id.,* Rule 17, subd. (a).) The informal exchange includes copies of all documents in their possession or control on which they rely in support of their positions, witness names, expert names and expert reports, which must be exchanged within 21 calendar days after all pleadings or notice of claims have been received. (*Ibid.*)

Each party may take at least one deposition, and the arbitrator may grant a request for additional depositions based upon reasonable need, availability, and burdensomeness. (Zakariaie Decl., Exh. D, Rule 17, subd. (b).) The parties are under a continuing obligation to provide relevant, non-privileged documents to supplement their identification of witnesses and experts. (*Id.,* at

Rule 17, subd. (c).) Parties may undertake third-party discovery with approval of the arbitrator. (*Id.,* at Rule 17, subd. (e).)

Contrary to Plaintiff's characterization of minimal discovery, the JAMS employment rules indicate that significant discovery is available; importantly, each side must engage in a voluntary and informal exchange of documents, witnesses, and expert reports within 21 days of when the pleadings are submitted. As such, Plaintiff has not presented evidence of substantive unconscionability in the form of minimal or inadequate discovery.

Hence, the Court FINDS that Plaintiff did not present evidence establishing substantive unconscionability in the 2019 and 2021 Agreements.

Both procedural and substantive unconscionability must be present in order for a court to exercise its discretion to refuse to enforce an arbitration agreement under the unconscionability doctrine. (*Armendariz, supra,* 24 Cal.4th at p. 114.) Here, only procedural unconscionability is present. Therefore, there is no basis to find that the 2019 and 2021 Agreements are unconscionable. Because valid arbitration agreements exist between Plaintiff and Defendants and Plaintiff did not meet her burden to show that the agreements are unenforceable, it is appropriate to compel arbitration in these circumstances.

Thus, the Court GRANTS Defendants' motion to compel arbitration and ORDER the parties to arbitrate the claims before JAMS. The Court also GRANTS Defendants' request to stay the instant action pending completion of arbitration.

<u>RULING</u>

For all the reasons set forth above, the Court rules as follows:

1) SUSTAINS Defendants' Objection 1 based on legal conclusion; SUSTAINS Objection 3 based on hearsay; OVERRULES Objections 2, 4, 5, 6.
2) FINDS that a valid arbitration agreement exists between Plaintiff and Defendants.
3) FINDS there is a moderate degree of procedural unconscionability present in the 2019 and 2021 Agreements.

4) FINDS that Plaintiff did not present evidence establishing substantive unconscionability in the 2019 and 2021 Agreements.
5) GRANTS Defendants' motion to compel arbitration and ORDER the parties to arbitrate the claims before JAMS. GRANTS Defendants' request to stay the instant action pending completion of arbitration.

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CIVSB2519000

ESPINOZA V CITY OF RIALTO

TENTATIVE RULING(S):

PROCEDURAL POSTURE

On July 1, 2025, Plaintiff Maria Espinoza filed a form complaint against Defendants the City of Rialto, the City of Fontana, San Bernardino County, the State of California, the California Department of Transportation, John Doe, and Does 1-50, alleging causes of action for premises liability (dangerous condition on public property), motor vehicle, and general negligence.

On September 5, 2025, Plaintiff filed a Request for Dismissal as to the City of Rialto, without prejudice. On September 15, 2025, Plaintiff filed a Request for Dismissal as to the State of California and the California Department of Transportation, without prejudice.

After a demurrer to the complaint was sustained with leave to amend, Plaintiff filed the operative First Amended Complaint (FAC) on January 21, 2026.

In the operative FAC, which is also a form complaint, Plaintiff now names the City of Fontana, San Bernardino County, John Doe, and Does 1-50 as the Defendants. She alleges the same causes of action.

With respect to the first cause of action for premises liability (dangerous condition of public property), Plaintiff alleges that on or about July 8, 2024, the County and Fontana had actual and constructive notice of the existence of the dangerous condition in sufficient time prior to the injury to have corrected it and said condition was created by employees of the defendant public entities. More specifically, Plaintiff alleges that at or near the intersection of Santa Ana Avenue and Cedar Avenue in Bloomington, the traffic signals were inoperative, dangerous, defective, unregulated, in a state of disrepair and/or malfunctioning in that they were flashing red on multiple occasions in the days before the subject incident without proper synchronization, creating a physical deficiency that exposed users to an increased risk of collision from uncontrolled and/or confused traffic flow. It is alleged the Defendants negligently and/or recklessly maintained, managed, operated, controlled and safeguarded the premises. Moreover, it is alleged Defendants had actual or constructive notice of the malfunction but failed to repair the signals, install temporary stop signs, barricade the area, and/or provide adequate warnings, which rendered the intersection dangerous and resulting in serious bodily harm to Plaintiff.

Plaintiff alleges that as she was operating her vehicle with due care at the subject intersection, John Doe [subsequently identified as Greg Rendon] failed to come to a stop or yield to oncoming traffic as required and collided with Plaintiff. Plaintiff alleges this claim is brought pursuant to Government code sections 835 and 815.2. Plaintiff also alleges that Fontana was served with a claim for damages pursuant to Government Code section 911.2 on January 8, 2025, which has not been rejected. The County was also served with a claim on January 8, 2025, which was rejected on February 19, 2025.

On February 26, 2026, the County filed the instant demurrer to the FAC and the declaration of counsel, Maurice S. Kane.

Plaintiff opposes, and the County replies.

Meet and Confer

Under Code of Civil Procedure section 430.41, subdivision (a), before filing a demurrer, the objecting party shall meet and confer with the opposing party for the purpose of determining whether an agreement can be reached to resolve the objections to the pleading. The parties should meet and confer at least five days before the responsive pleading is due. The meet and confer shall be in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).)

In support of the demurrer, counsel for the County, Maurice S. Kane submits a declaration. He attests that he emailed Plaintiff's counsel and attached a detailed meet and confer letter and then phoned after not having received a response. He left a detailed message, which was also not returned. (Kane Decl. ¶¶ 4-6; Exhs. C, D.) Though the parties have not met and conferred, it is clear that defense counsel made multiple attempts. The Court is considering imposing monetary sanctions against Plaintiff's counsel for not meeting and conferring and will address this issue during the hearing of this motion.

Merits of the Demurrer

The County demurs to Plaintiff's first cause of action pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f) for failing to state facts sufficient to constitute a cause of action, for failing to comply with the Court's previous ruling requiring the pleading of a physical characteristic of the roadway that constitutes a dangerous condition, because the allegations are uncertain, and on the grounds the County is immune from liability pursuant to Government Code sections 830.4 and 830.8.

First Cause of Action: Premises Liability (Dangerous Condition on Public Property). Government Code section 835 sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property. (*See Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1121-1132.)

To state a cause of action against a public entity under Government Code section 835, a plaintiff must plead: (1) a dangerous condition existed on the public property at the time of the injury; (2)

the condition proximately caused the injury; (3) the condition created a reasonably foreseeable risk of the kind of injury sustained; and (4) the public entity had actual or constructive notice of the dangerous condition of the property in sufficient time to have taken measures to protect against it. (Gov. Code, § 835; *Brenner v. City of El Cajon* (2003) 113 Cal.App.4th 434, 439.) Government Code section 830 defines a "[d]angerous condition" as "a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property is used with due care in a manner in which it is reasonably foreseeable that it will be used." Property is not "dangerous" within the meaning of the statutory scheme if the property is safe when used with due care and the risk of harm is created only when foreseeable users fail to exercise due care. (Gov. Code, § 830; *Id.*) Even though it is foreseeable that persons may use public property without due care, a public entity may not be held liable for failing to take precautions to protect such persons. (*Fuller v. State of California* (1975) 51 Cal.App.3d 926, 939.)

The limited and statutory nature of governmental liability mandates that claims against public entities be specifically pleaded. (*Susman v. City of Los Angeles* (1969) 269 Cal.App.2d 803, 809.) Accordingly, a claim alleging a dangerous condition may not rely on generalized allegations. (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5.) The complaint must specify in what manner the condition constituted a dangerous condition. (*People ex rel. Dept. of Transportation v. Sup. Ct.* (1992) 5 Cal.App.4th 1480, 1485-86.)

The County argues that Plaintiff again fails to allege any physical characteristic of County property that would constitute a "dangerous condition" under Government Code section 835. The County relies again on *Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340. "The existence of a dangerous condition is ordinarily a question of fact but "can be decided as a matter of law if reasonable minds can come to only one conclusion."" (*Id.* at p. 1347.) More to the point: "A plaintiff's allegations, and ultimately the evidence, must establish a *physical* deficiency in the property itself. A dangerous condition exists when public property "is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself," or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users." (*Id*. at pp. 1347-1348, emphasis in the original, citations omitted.) The County argues that this demonstrates why the pleadings here fail: Plaintiff fails to state the physical characteristic that rendered the property dangerous. The County argues the flashing red traffic lights described in the FAC do not suffice.

While the County refers to the CHP report (to show the lights were operative), that goes beyond the four corners of the FAC and was not the subject of judicial notice; however, the County's argument continues. The County argues that even if the red lights were inoperative that is not a basis for the claim because malfunctioning red lights do not constitute a physical characteristic of the property itself. The County argues that structurally, the intersection does not change whether the lights are operative or inoperative.

The County continues to argue, correctly, that third-party conduct is also not enough to allege a dangerous condition. "But it is insufficient to show only harmful third-party conduct, like the conduct of a motorist. "'[T]hird party conduct, by itself, unrelated to the condition of the property, does not constitute a "dangerous condition" for which a public entity may be held liable.'" There must be a defect in the physical condition of the property and that defect must have some causal relationship to the third-party conduct that injures the plaintiff. "[P]ublic liability lies under [Government Code] section 835 only when a feature of the public property has 'increased or intensified' the danger to users from third party conduct."" (*Id*. at p. 1348, citations omitted.) The County argues here that the other driver and Plaintiff herself are the cause of the collision, rather than any physical characteristic of the property.

More importantly, perhaps, the County notes that flashing red lights alone do not constitute a dangerous condition as a matter of law. Vehicle Code section 21457, subdivision (a) provides that: "When a red lens is illuminated with rapid intermittent flashes, a driver shall stop at a clearly marked limit line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it, and the driver may proceed subject to the rules applicable after making a stop at a stop sign." In other words, this code section, by law, equates the flashing red lights to a stop sign. Vehicle code section 21800, subdivision (d) also determines the rules of the road with respect to four-way stops: “(d)(1) The driver of any vehicle approaching an intersection which has official traffic control signals that are inoperative shall stop at the intersection, and may proceed with caution when it is safe to do so. [¶] (2) When two vehicles enter an intersection from different highways at the same time, and the official traffic control signals for the intersection are inoperative, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on his or her immediate right, except that the driver of any vehicle on a terminating highway shall yield the right-of-way to any vehicle on the intersecting continuing highway.”

“A public entity does not create a dangerous condition on its property “merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs ....” (§ 830.4.) If, on the other hand, the government installs traffic signals and invites the public to justifiably rely on them, liability will attach if the signals malfunction, confusing or misleading motorists, and causing an accident to occur. The reasoning behind this rule is that the government creates a dangerous condition and a trap when it operates traffic signals that, for example, direct motorists to “go” in all four directions of an intersection simultaneously, with predictable results. If the government turns off traffic signals entirely to avoid confusion, liability does not attach. “When the [traffic] lights were turned off, their defective condition could no longer mislead or misdirect the injured party.”” (*Chowdhury v. City of Los Angeles* (1995) 38 Cal.App.4th 1187, 1194–1195, citations omitted (*Chowdhury*).) This illustrates that if the signals malfunction, for example two opposing lights being green and causing an accident, then there is a liability. However, flashing red alone is equated to a stop sign, and reasonable minds can only come to one conclusion that that alone does not constitute a dangerous condition.

The FAC explicitly alleges the lights were flashing red. But it is also alleged that they were “sporadically flashing red and at other times not flashing at all.” It is clear that flashing red alone is insufficient. As the *Chowdhury* case demonstrates, an entity may turn the lights off completely and that is not a dangerous condition—thus, not flashing at all, is also not a dangerous condition. Next, it is also alleged that the accident was caused “due to the inoperable, inconsistent, sporadic and/or unsynchronized traffic lights". However, as stated above, this cause of action must be pleaded with specificity. Plaintiff essentially alleges flashing red lights (not a dangerous condition), no lights (not a dangerous condition), "and/or" unsynchronized traffic lights. Unsynchronized traffic lights, depending on how they are flashing, could be a dangerous condition as stated above. But the use of the "and/or" means that there is no specific allegation the lights were unsynchronized. In addition, because this cause of action must be specifically pleaded, Plaintiff must allege how the lights were unsynchronized because the way it is alleged, it could very well be the flashing red lights or no lights at all, which again, do not constitute a dangerous condition. In this sense, the cause of action is also uncertain.

The following analysis from *Chowdhury*, supra, is helpful: "Under the circumstances, motorists approaching the intersection were bound not by the City's inoperative light, but by the provisions of the Vehicle Code, which effectively transform an inoperative signal light into a stop sign. Once the signals failed, the City could reasonably foresee that motorists using due care would obey the provisions of the Vehicle Code and make a full stop before proceeding when it was safe to do so. The City cannot be charged with foreseeing that a motorist will recklessly disobey traffic laws and speed through an intersection without heed to its inoperative traffic lights any more than it can be charged with foreseeing that irresponsible drivers will race at 100 miles per hour down a highway or drive the wrong way down a one-way street, in violation of the traffic laws." (*Id*. at pp. 1195-1196, citation and internal footnote omitted.) "As one court has observed, any property can be dangerous if used in a sufficiently improper manner. For this reason, a public entity is only required to provide roads that are safe for reasonably foreseeable careful use. "If [ ] it can be shown that the property is safe when used with due care and that a risk of harm is created only when foreseeable users fail to exercise due care, then such property is not 'dangerous' within the meaning of section 830, subdivision (a)."" (*Id*. at p. 1196, citation omitted.) "A four-way stop is not an inherently dangerous condition when used with due care by the general public. The only risk of harm was from a motorist who failed to exercise due care by obeying the de facto stop signs. The City is not liable for that conduct." (*Ibid*.) Given the lack of specificity in the FAC, the FAC can be read to allege a four-way stop for which the County is not liable.

Finally, the County argues that they have statutory immunity in light of these allegations under Government Code sections 830.4 and 830.8. Section 830.4 provides that "A condition is not a dangerous condition within the meaning of this chapter merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs, as described by the Vehicle Code, or distinctive roadway markings as described in Section 21460 of the Vehicle Code." (Gov. Code, § 830.4.) And, section 830.8 provides that "Neither a public entity nor a public employee is liable under this chapter for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code. Nothing in this section exonerates a public entity or public employee from liability for injury proximately caused by such failure if a signal, sign, marking or device (other than one described in Section 830.4) was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care." (Gov. Code, § 830.8.) Again, the allegations in the FAC only provide allegations that would fall under those for which the County is not liable. In the Opposition, Plaintiff states the dangerous condition was inoperative, unregulated, and defective traffic controls. (See Opp. at 5:13-14.) However, inoperative lights alone as shown above, are not a dangerous condition, nor are unregulated lights if that means they are flashing red as alleged, nor are defective lights if they are flashing red. This allegation lacks specificity, and, in the Opposition, Plaintiff does not account for the use of "and/or" in the FAC, which results in no direct allegation the lights were not synchronized. Plaintiff goes on to explain that the County failed to barricade the area or provided warning signs. But Plaintiff has not alleged a dangerous condition that would require such signs or barricades. In fact, the Opposition relies greatly on this allegation of synchronization, except that the FAC alleges the traffic signals were inoperative and/or malfunctioning such that there were flashing red lights, without synchronization. This means the lights could have simply been inoperative, resulting in a four-way stop "or" lacked synchronization. The lack of a direct allegation here results in a failure to state a cause of action. In addition, even if Plaintiff alleged a lack of synchronization, Plaintiff needs to plead the cause with specificity and state how the lights were not synchronized. As the FAC currently reads, it appears the lack of synchronization is simply that there were flashing red lights rather than a dangerous condition (for example opposing green lights).

Based on the analysis set forth above, the County's Demurrer to the FAC is well-taken and the Court therefore SUSTAINS the demurrer without leave to amend.